frequent return of electors, and a frequent change of meaſures, from a frequent change of men; whilſt energy in government requires not only a certain duration of power, but the execution of it by a ſingle hand. How far the convention may have ſucceeded in this part of their work, will better appear on a more accurate view of it. From the curſory view, here taken, it muſt clearly appear to have been an arduous part.

Not leſs arduous moſt have been the taſk of marking the proper line of partition, between the authority of the general, and that of the ſtate governments. Every man will be ſenſible of this difficulty, in proportion as he has been accuſtomed to contemplate and diſcriminate objects, extenſive and complicated in their nature. The faculties of the mind itſelf have never yet been diſtinguiſhed and defined, with ſatisfactory preciſion, by all the efforts of the moſt acute and metaphyſical philoſophers. Senſe, perception, judgment, deſire, volition, memory, imagination, are found to be ſeparated, by ſuch delicate ſhades and minute gradations, that their boundaries have eluded the moſt ſubtle inveſtigations, and remain a pregnant ſource of ingenious diſquiſition and controverſy. The boundaries between the great kingdoms of nature, and ſtill more, between the various provinces, and leſſer portions, into which they are ſubdivided, afford another illuſtration of the ſame important truth. The moſt ſagacious and laborious naturaliſts have never yet ſucceeded, in tracing with certainty, the line which ſeparates the diſtrict of vegetable life from the neighbouring region of unorganized matter, or which marks the termination of the former and the commencement of the animal empire. A ſtill greater obſcurity lies in the diſtinctive characters, by which the objects in each of theſe great departments of nature have been arranged and aſſorted. When we paſs from the works of nature, in which all the delineations are perfectly

accurate, and appear to be otherwiſe only from the imperfection of the eye which ſurveys them, to the inſtitutions of man, in which the obſcurity ariſes as well from the object itſelf, as from the organ by which it is contemplated; we muſt perceive the neceſſity of moderating ſtill farther our expectations and hopes from the efforts of human ſagacity. Experience has inſtructed us that no ſkill in the ſcience of government has yet been able to diſcriminate and define, with ſufficient certainty, its three great provinces, the legiſlative, executive and judiciary; or even the privileges and powers of the different legiſlative branches. Queſtions daily occur in the courſe of practice, which prove the obſcurity which reigns in theſe ſubjects, and which puzzles the greateſt adepts in political ſcience. The experience of ages, with the continued and combined labors of the moſt enlightened legiſlators and juriſts, have been equally unſucceſsful in delineating the ſeveral objects and limits of different codes of laws and different tribunals of juſtice. The preciſe extent of the common law, the ſtatute law, the maritime law, the eccleſiaſtical law, the law of corporations and other local laws and cuſtoms, remain ſtill to be clearly and finally eſtabliſhed in Great Britain, where accuracy in ſuch ſubjects has been more induſtriouſly purſued than in any other part of the world. The juriſdiction of her ſeveral courts, general and local, of law, of equity, of admiralty, &c. is not leſs a ſource of frequent and intricate diſcuſſions, ſufficiently denoting the indeterminate limits by which they are reſpectively circumſcribed. All new laws, though penned with the greateſt technical ſkill, and paſſed on the fulleſt and moſt mature deliberation, are conſidered as more or leſs obſcure and equivocal, until their meaning be liquidated and aſcertained by a ſeries of particular diſcuſſions and adjudications. Beſides the obſcurity ariſing from the complexity of objects, and the imperfection of the human faculties, the medium through

through which the conceptions of men are conveyed to each other, adds a freſh embarraſment. The uſe of words is to expreſs ideas. Perſpicuity therefore requires not only that the ideas ſhould be diſtinctly formed, but that they ſhould be expreſſed by words diſtinctly and excluſively appropriated to them. But no language is ſo copious as to ſupply words and phraſes for every complex idea, or ſo correct as not to include many equivocally denoting different ideas. Hence it muſt happen, that however accurately objects may be diſcriminated in themſelves, and however accurately the diſcrimination may be conſidered, the definition of them may be rendered inaccurate by the inaccuracy of the terms in which it is delivered. And this unavoidable inaccuracy muſt be greater or leſs, according to the complexity and novelty of the objects defined. When the Almighty himſelf condeſcends to addreſs mankind in their own language, his meaning luminous as it muſt be, is rendered dim and doubtful, by the cloudy medium through which it is communicated. Here then are three ſources of vague and incorrect definitions; indiſtinctneſs of the object, imperfection of the organ of conception, inadequateneſs of the vehicle of ideas. Any one of theſe muſt produce a certain degree of obſcurity. The convention, in delineating the boundary between the federal and ſtate juriſdictions, muſt have experienced the full effect of them all.

To the difficulties already mentioned, may be added the interfering pretenſions of the larger and ſmaller ſtates. We cannot err in ſuppoſing that the former would contend for a participation in the government, fully proportioned to their ſuperior wealth and importance; and that the latter would not be leſs tenacious of the equality at preſent enjoyed by them. We may well ſuppoſe that neither ſide would entirely yield to the other, and conſequently that the ſtruggle could be terminated only by compromiſe. It is extremely probable alſo, that after the